

Chandrabhan Patel vs Smt. Anjana Patel on 10 December, 2018

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CRR-3957-2018

The High Court Of Madhya Pradesh

CRR-3957-2018

(CHANDRABHAN PATEL Vs SMT. ANJANA PATEL)

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Jabalpur, Dated : 10-12-2018

Ms.Sadhna Tiwari, learned counsel for the applicant.

None for the respondent.

Applicant/non-applicant has filed this Criminal Revision under Section 401 of the Cr.P.C. to set aside the impugned order dated 27.06.2018 passed by Principal Judge Family Court, Narsingpur in MJC No.101/17, whereby Principal Judge Family Court allowed the application and ordered that applicant paid the amount of maintenance of Rs.2500/- per month of the interim maintenance to the respondent/wife.

Heard arguments of the learned counsel for the applicant/non-applicant and also perused the record. It is evident from the record that the applicant has filed the application under Section 9 Hindu Marriage Act before the Principal Judge Family Court, Jabalpur that in Civil Suit No.33A/2017. The application filed by the respondent under Section 24 Hindu Marriage Act dated 11/5/2017 whereby learned Principal Judge Family Court, Jabalpur ordered the applicant to pay of Rs.2500/- per month as interim maintenance to the respondent/wife. Thereafter, respondent/wife filed an application under Section 125 of Cr.P.C. before the Principal Judge Family Court, Narsingpur that in MJC No.101/17 and the Family Court has awarded interim maintenance of Rs.2500/- per month to the respondent/wife vide order dated 27/6/2018 but in para-19 of the said order the Family Court recorded the finding. If respondent/wife was getting of Rs.2500/- per month in pursuant to civil suit No.33-A/2017 then that said the amount will be adjusted in MJC No.101/2017.

Therefore, it is not disputed that the petitioner/husband will pay of the maintenance amount of Rs.2500/- only in one case.

In view of the above there is no necessity to interfere in the impugned 2 CRR-3957-2018 order.

Therefore, this petition is hereby dismissed with the aforesaid finding.

(RAJENDRA KUMAR SRIVASTAVA) JUDGE sm